ADMINISTRATIVE TRIBUNALS

PURPOSE → 323A/323B → CAT → PROCEDURE → REVIEW → INDEPENDENCE → RATIONALISATION → STATUS → PYQS → SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

00 TRIBUNALISATION: SPECIALIST JUSTICE UNDER CONSTITUTIONAL SUPERVISION

SPECIALIST JUSTICE UNDER CONSTITUTIONAL SUPERVISION · ROOT QUESTION · CAN SPECIALIST ADJUDICATION IMPROVE ACCESS AND SPEED WITHOUT CREATING · RATIONALE EXPERTISE · FLEXIBLE PROCEDURE · HIGH-VOLUME DISPOSAL · GEOGRAPHICAL ACCESS · LOWER COST.

ROOT QUESTION

Can specialist adjudication improve access and speed without creating executive-controlled courts? → RATIONALE expertise → flexible procedure

CONSTITUTIONAL BASIS / ARTICLE
- ROOT QUESTION
- Can specialist adjudication improve access and speed without creating executive-controlled courts?
- RATIONALE expertise
- flexible procedure

POWER / PROCEDURE
- high-volume disposal
- geographical access
- lower cost.
- CONSTITUTIONAL SOURCE

CHECK / LIMIT
- 42nd Amendment 1976 → Part XIVA → Articles 323A and 323B.
- STATUTORY SOURCE
- Administrative Tribunals Act 1985 → CAT and enabled SAT arrangements.
- NON-NEGOTIABLE FLOOR judicial independence + natural justice + reasoned order

FEDERAL / RIGHTS IMPACT
- High Court/Supreme Court constitutional review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 323A confines service tribunals to parliamentary creation, while Article 323B permits Parliament or State legislatures to establish tribunals for specified subjects within competence.

01 ARTICLES 323A AND 323B COMPARED

ARTICLES 323A AND 323B COMPARED · ARTICLE 323A PUBLIC-SERVICE RECRUITMENT AND SERVICE CONDITIONS. · ADMINISTRATIVE-TRIBUNAL DESIGN. · ARTICLE 323B LISTED SUBJECTS · TAX, LABOUR, LAND REFORM, ELECTIONS AND OTHERS IN TEXT · APPROPRIATE LEGISLATURE WITHIN COMPETENCE. · SUBJECT-SPECIFIC TRIBUNAL/HIERARCHY. · COMMON HISTORY TEXT ALLOWED COURT EXCLUSION.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 323A public-service recruitment and service conditions.	ARTICLE 323B listed subjects: tax, labour, land reform, elections and others in text.	COMMON HISTORY text allowed court exclusion.	TRAP enabling Article != automatic creation of a tribunal.
law-maker: Parliament.	law-maker: appropriate legislature within competence.	CURRENT LAW	
administrative-tribunal design.	subject-specific tribunal/hierarchy.	L. Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.	

CONSTITUTIONAL BASIS / ARTICLE
- ARTICLE 323A public-service recruitment and service conditions.
- law-maker: Parliament.
- administrative-tribunal design.

POWER / PROCEDURE
- ARTICLE 323B listed subjects: tax, labour, land reform, elections and others in text.
- law-maker: appropriate legislature within competence.
- subject-specific tribunal/hierarchy.

CHECK / LIMIT
- COMMON HISTORY text allowed court exclusion.
- CURRENT LAW
- L. Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

FEDERAL / RIGHTS IMPACT
- TRAP enabling Article != automatic creation of a tribunal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 323A and 323B enable tribunal legislation but do not themselves create the CAT or every subject-specific tribunal.

02 CAT AND SAT INSTITUTIONAL ARCHITECTURE

CAT AND SAT INSTITUTIONAL ARCHITECTURE · PRINCIPAL BENCH + NOTIFIED BENCHES · CHAIRPERSON + JUDICIAL MEMBERS + ADMINISTRATIVE MEMBERS UNDER CURRENT · JURISDICTION COVERED UNION RECRUITMENT/SERVICE MATTERS AND NOTIFIED BODIES. · STATE SERVICE TRIBUNAL MAY EXIST THROUGH STATUTORY ARRANGEMENT · STATES VARY AND SOME SATS HAVE BEEN ABOLISHED OR · EXCLUSIONS FOLLOW EXACT ADMINISTRATIVE TRIBUNALS ACT TEXT AND NOTIFICATIONS · NOT EVERY PUBLIC EMPLOYEE OR CONSTITUTIONAL OFFICE ENTERS CAT.

Principal Bench + notified benches

Chairperson + Judicial Members + Administrative Members under current law. → JURISDICTION covered Union recruitment/service matters and notified bodies. → State service tribunal may exist through statutory arrangement

CONSTITUTIONAL BASIS / ARTICLE
- Principal Bench + notified benches
- Chairperson + Judicial Members + Administrative Members under current law.

POWER / PROCEDURE
- JURISDICTION covered Union recruitment/service matters and notified bodies.
- State service tribunal may exist through statutory arrangement

CHECK / LIMIT
- States vary and some SATs have been abolished or not constituted.
- EXCLUSIONS follow exact Administrative Tribunals Act text and notifications

FEDERAL / RIGHTS IMPACT
- not every public employee or constitutional office enters CAT.
- CONTROL appointments, tenure and service conditions must be stated with the 25 August 2026 caveat.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Because government is a major tribunal litigant, executive control over appointments, tenure and finance can compromise the independence of the forum judging it.

03 APPLICATION, PROCEDURE, POWERS AND CONTEMPT

APPLICATION, PROCEDURE, POWERS AND CONTEMPT · PROCESS JURISDICTION CHECK · ORIGINAL APPLICATION · INTERIM ISSUE · REASONED FINAL ORDER. · PROCEDURE NATURAL JUSTICE · FLEXIBLE PROCEDURE · NOT RIGIDLY BOUND BY CPC.

PROCESS jurisdiction check → Original Application → notice/reply/record → interim issue → hearing → reasoned final order. → PROCEDURE natural justice → flexible procedure → not rigidly bound by CPC.

CONSTITUTIONAL BASIS / ARTICLE
- PROCESS jurisdiction check → Original Application → notice/reply/record
- interim issue → hearing → reasoned final order.
- PROCEDURE natural justice

POWER / PROCEDURE
- flexible procedure
- not rigidly bound by CPC.
- POWERS summons

CHECK / LIMIT
- review/other statutory powers.
- CONTEMPT statutory power subject to governing law and constitutional review.
- LIMIT procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.

FEDERAL / RIGHTS IMPACT
- flexible procedure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Tribunal Reforms Act 2021 created a common framework for covered tribunals, but later judgments invalidated important appointment and tenure provisions.

04 L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN

L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN · ORIGINAL CONSTITUTIONAL DESIGN TRIBUNAL AS SUBSTITUTE FIRST-INSTANCE FORUM + · L. CHANDRA KUMAR (1997) · HIGH COURT ARTICLES 226/227 AND SUPREME COURT ARTICLE 32 · EXCLUSION CLAUSES INVALID · TRIBUNALS MAY TEST VIRES OF SUBORDINATE LEGISLATION AND STATUTES · OPERATIVE CHAIN TRIBUNAL ORDER · TERRITORIAL HIGH COURT DIVISION BENCH

CONSTITUTIONAL BASIS / ARTICLE
- ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses.
- L. Chandra Kumar (1997)

POWER / PROCEDURE
- High Court Articles 226/227 and Supreme Court Article 32 review are basic structure
- exclusion clauses invalid

CHECK / LIMIT
- tribunals may test vires of subordinate legislation and statutes except parent legislation limits.
- OPERATIVE CHAIN tribunal order → territorial High Court Division Bench → Supreme Court constitutional route.

FEDERAL / RIGHTS IMPACT
- LIMIT service-condition detail remains date-sensitive; doctrine is stable, implementation is not.
- ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: L. Chandra Kumar (1997) preserves High Court review over tribunal decisions, but a longer appellate chain makes first-instance quality essential to efficiency.

05 TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE DECISIONS

TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE DECISIONS · UNION OF INDIA V. R. GANDHI (2010) TRANSFERRED JUDICIAL · MADRAS BAR ASSOCIATION NTT (2014) · NATIONAL TAX TRIBUNAL DESIGN INVALIDATED; CORE JUDICIAL FUNCTIONS CANNOT · MADRAS BAR ASSOCIATION IV (2020) · TRIBUNAL RULES SCRUTINISED; SELECTION AND TENURE SAFEGUARDS REINFORCED. · MADRAS BAR ASSOCIATION V (2021) SHORT TENURE, AGE AND · ROJER MATHEW V. SOUTH INDIAN BANK (2019)

Union of India v. R. Gandhi (2010) transferred judicial work requires equivalent independence, qualifications and safeguards. → Madras Bar Association NTT (2014) → National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated. → Madras Bar Association IV (2020) → Tribunal Rules scrutinised; selection and tenure safeguards reinforced.

CONSTITUTIONAL BASIS / ARTICLE
- Union of India v. R. Gandhi (2010) transferred judicial work requires equivalent independence, qualifications and safeguards.
- Madras Bar Association NTT (2014)
- National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.

POWER / PROCEDURE
- Madras Bar Association IV (2020)
- Tribunal Rules scrutinised; selection and tenure safeguards reinforced.
- Madras Bar Association V (2021) short tenure, age and executive override defects invalidated in the 2021 ordinance/Act line.

CHECK / LIMIT
- Rojer Mathew v. South Indian Bank (2019)
- Finance Act/rules route and tribunal independence examined.
- Madras Bar Association tribunal reforms (2025) reported 2025 INSC 1330 continues the constitutional control and directs institutional reform.

FEDERAL / RIGHTS IMPACT
- LIMIT service-condition detail remains date-sensitive; doctrine is stable, implementation is not.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal tenure, age, vacancy and pecuniary limits remain amendment- and judgment-sensitive, making undated numerical claims unreliable.

06 RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES

RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES · 2021 RATIONALISATION ABOLISH SPECIFIED APPELLATE BODIES · TRANSFER FUNCTIONS TO COURTS/OTHER FORUMS · COMMON SERVICE FRAMEWORK · POSSIBLE GAIN LESS FRAGMENTATION · FEWER DUPLICATIVE BODIES · CLEARER APPEAL PATH. · POSSIBLE COST SPECIALISED EXPERTISE LOST

2021 RATIONALISATION abolish specified appellate bodies → transfer functions to courts/other forums → common service framework. → POSSIBLE GAIN less fragmentation → fewer duplicative bodies → clearer appeal path.

CONSTITUTIONAL BASIS / ARTICLE
- 2021 RATIONALISATION abolish specified appellate bodies → transfer functions to courts/other forums
- common service framework.
- POSSIBLE GAIN less fragmentation

POWER / PROCEDURE
- fewer duplicative bodies
- clearer appeal path.
- POSSIBLE COST specialised expertise lost

CHECK / LIMIT
- burden shifted to High Courts vacancies and transition delay
- access becomes geographically harder.
- SAT VARIATION abolition/merger differs by State and statute: no uniform live SAT map should be invented.

FEDERAL / RIGHTS IMPACT
- TEST pendency outcome + bench capacity + independence + user cost + transitional clarity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal analysis must separate specialised first-instance adjudication from constitutional supervision, testing efficiency gains against independence, access and judicial-review safeguards.

07 CAT, COURTS, COMMISSIONS AND ADR DISTINGUISHED

CAT, COURTS, COMMISSIONS AND ADR DISTINGUISHED · CAT STATUTORY SERVICE ADJUDICATION · BINDING REASONED ORDER · HIGH COURT REVIEW. · HIGH COURT CONSTITUTIONAL COURT · WRIT/SUPERVISORY JURISDICTION · BROAD PUBLIC-LAW CONTROL. · COMMISSION INVESTIGATION/ADVICE/REPORT UNLESS STATUTE GRANTS ADJUDICATORY POWER.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CAT statutory service adjudication → binding reasoned order → High Court review.	COMMISSION investigation/advice/report unless statute grants adjudicatory power.	ARBITRATION consensual private adjudication → limited statutory challenge.	TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.
HIGH COURT constitutional court → writ/supervisory jurisdiction → broad public-law control.	LOK ADALAT statutory settlement/conciliation → award based on compromise.	DEPARTMENTAL APPEAL administrative reconsideration → not independent judicial adjudication.	CAT statutory service adjudication → binding reasoned order → High Court review.

CONSTITUTIONAL BASIS / ARTICLE
- CAT statutory service adjudication → binding reasoned order → High Court review.
- HIGH COURT constitutional court → writ/supervisory jurisdiction → broad public-law control.

POWER / PROCEDURE
- COMMISSION investigation/advice/report unless statute grants adjudicatory power.
- LOK ADALAT statutory settlement/conciliation → award based on compromise.

CHECK / LIMIT
- ARBITRATION consensual private adjudication → limited statutory challenge.
- DEPARTMENTAL APPEAL administrative reconsideration → not independent judicial adjudication.

FEDERAL / RIGHTS IMPACT
- TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.
- CAT statutory service adjudication → binding reasoned order → High Court review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The promise of tribunals — expertise, speed and access — is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.

08 CAT JURISDICTION, EXCLUSIONS AND PROCEDURE

CAT JURISDICTION, EXCLUSIONS AND PROCEDURE · Section 14 service matters · notified authorities and bodies · armed forces · Supreme Court or High Court staff · legislative secretariat staff · departmental remedies · limitation

JURISDICTION
- Section 14 service matters
- notified authorities and bodies

EXCLUSIONS
- armed forces
- Supreme Court or High Court staff
- legislative secretariat staff

PROCESS
- departmental remedies
- limitation
- natural justice

REVIEW
- reasoned order
- High Court Division Bench

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CAT is a specialist statutory forum whose jurisdiction, procedure and exclusions must be proved before its merits are reached.

09 CURRENT JUDICIAL AND LEGISLATIVE STATUS

CURRENT JUDICIAL AND LEGISLATIVE STATUS · 2025 INSC 1330 · invalidated re-enacted defects · 9 March incumbent continuity · 8 September outer date · enactment is not commencement · commission direction is not operation · Gazette notification

2025 JUDGMENT
- 2025 INSC 1330
- invalidated re-enacted defects

2026 ORDER
- 9 March incumbent continuity
- 8 September outer date

STATUS FIREWALL
- enactment is not commencement
- commission direction is not operation

EVIDENCE
- Gazette notification
- appointment record

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Current tribunal law must separate judgment, enactment, commencement and operational constitution.

10 EXACT PYQS AND ANSWER EXECUTION

EXACT PYQS AND ANSWER EXECUTION · 2018 jurisdiction · 2019 CAT authority · 2024 Lok Adalat and arbitration · 2025 rationalisation · exact wording · all question limbs · Article and Act

VERIFIED
- 2018 jurisdiction
- 2019 CAT authority
- 2024 Lok Adalat and arbitration
- 2025 rationalisation

METHOD
- exact wording
- all question limbs

EVIDENCE
- Article and Act
- controlling case

VERDICT
- specialisation
- independence and review

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A high-scoring tribunal answer pairs specialist purpose with independence, access and unexcluded constitutional review.

11 UPSC SYNTHESIS AND REFORM ARCHITECTURE

UPSC SYNTHESIS AND REFORM ARCHITECTURE · PRELIMS FIREWALL · 323A SERVICE · 323B LISTED SUBJECTS · CONSTITUTIONAL COURT · ARBITRARY FIRST INSTANCE · FINAL CONSTITUTIONAL WORD · PENDENCY CURE.

PRELIMS FIREWALL → 323A service != 323B listed subjects → enabling != creating → CAT != constitutional court → flexible != arbitrary first instance != final constitutional word

CONSTITUTIONAL BASIS / ARTICLE
- PRELIMS FIREWALL
- 323A service != 323B listed subjects
- enabling != creating
- CAT != constitutional court

POWER / PROCEDURE
- flexible != arbitrary first instance != final constitutional word
- rationalisation != pendency cure.
- MANN SPINE rationale → constitutional/statutory source → structure/jurisdiction
- procedure/powers → L. Chandra Kumar (1997) chain

CHECK / LIMIT
- independence cases → rationalisation/access → reform.
- REFORM independent appointments body
- secure adequate tenure
- transparent vacancies administrative autonomy

FEDERAL / RIGHTS IMPACT
- national data/standards
- regional benches coherent appeals
- periodic performance review without decisional interference.
- VERDICT tribunals are justified only as independent, accessible specialist courts under constitutional supervision.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal legitimacy depends on specialised adjudication, independent appointments, adequate capacity and preserved constitutional review rather than formal creation alone.

E SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

EXTRA · OPTIONAL ADVANCED ENRICHMENT · S.P. SAMPATH KUMAR INITIALLY ACCEPTED TRIBUNAL SUBSTITUTION IF THE · L. CHANDRA KUMAR (1997) HELD THAT EXCLUSION OF HIGH · TRIBUNALS MAY DECIDE CONSTITUTIONAL QUESTIONS IN THE FIRST INSTANCE · THIS PROTECTS CONSTITUTIONAL SUPERVISION BUT ADDS ANOTHER TIER; SPEED · THE ACT RATIONALISED THE TRIBUNAL LANDSCAPE BY ABOLISHING SPECIFIED · IT ESTABLISHED A COMMON SERVICE-CONDITION FRAMEWORK FOR COVERED TRIBUNAL · THE SUPREME COURT'S MADRAS BAR ASSOCIATION LINE INSISTS THAT

OPTIONAL DOCTRINE / CASE
- S.P. Sampath Kumar initially accepted tribunal substitution if the alternative
- L. Chandra Kumar (1997) held that exclusion of High Court/Supreme Court judicial review
- Tribunals may decide constitutional questions in the first instance, but their
- CAUTION: This protects constitutional supervision but adds another tier; speed therefore

ADVANCED LIMIT
- The Act rationalised the tribunal landscape by abolishing specified appellate
- It established a common service-condition framework for covered tribunal
- The Supreme Court's Madras Bar Association line insists that tribunal
- On 19 Nov 2025 , the Supreme Court in 2025 INSC 1330 struck down the

COMPARATIVE NUANCE
- On 9 Mar 2026 , the Court made a separate continuity arrangement extending
- 2025 GS-II Q2 (10 marks, 150 words): "Comment on the need of administrative
- Thesis: Tribunals remain justified by specialisation, accessibility and potential
- Structure: need - constitutional limits - 2021 rationalisation - gains and

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels